

ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. 4521 OF 2024

IN THE MATTER OF:
RAJESH KUMAR SHARMA

...PETITIONER

VERSUS

STATE OF MAHARASHTRA & ORS.

...RESPONDENTS

CORAM: HON'BLE MR. JUSTICE PRAKASH NARAYANAN
HON'BLE MRS. JUSTICE SUNITA MEHTA

DATE OF ORDER: 15th March, 2024

JUDGMENT

1. The petitioner, Rajesh Kumar Sharma, has filed this writ petition under Article 226 of the Constitution of India challenging
2. The petitioner was appointed as a Junior Engineer in the Public Works Department (PWD) of the Government of Maharashtra
3. The Respondent No. 1 (State of Maharashtra) and Respondent No. 2 (Department of Public Works) appeared through the
4. FINDINGS OF THE COURT:

After carefully perusing the pleadings and hearing the arguments of the learned counsel for both parties, this Court finds that

- (a) The termination of the petitioner's services without conducting a departmental inquiry and without affording him a reasonable opportunity of being heard is arbitrary, illegal, and violative of Article 14 and Article 21 of the Constitution.
- (b) The impugned order dated 10th September 2023 is arbitrary, illegal, and violative of Article 14 and Article 21 of the Constitution.
- (c) The respondents have failed to demonstrate any valid justification for bypassing the mandatory procedural safeguards.

5. DIRECTIONS:

In view of the aforesaid findings, this Court hereby issues the following directions:

- (i) The impugned termination order dated 10th September, 2023 is hereby quashed and set aside.
- (ii) Respondent No. 1 · State of Maharashtra, through its Principal Secretary, Department of Public Works · is directed to reinstate the petitioner to his former post with all consequential benefits.
- (iii) The petitioner shall be entitled to all consequential service benefits including continuity of service, but shall NOT be entitled to any arrears of pay.
- (iv) Respondent No. 2 is further directed to conduct a fresh departmental inquiry, if it so desires, in accordance with law and rules.
- (v) The respondents are directed to pay costs of Rs. 25,000/- to the petitioner within six weeks from today.

6. APPEAL / LIMITATION:

Any appeal against this judgment shall lie before the Division Bench of this Court. The limitation period for filing a Letters Patent

7. Accordingly, the Writ Petition is ALLOWED in the above terms.

(JUSTICE PRAKASH NARAYANAN)

(JUSTICE SUNITA MEHTA)

MUMBAI

DATE: 15th MARCH, 2024